

		Defendants may file a supplemental brief, not to exceed five pages, no later than 6/1/26. <u>Motion No. 2:</u> Plaintiff's Motion to Compel Defendant Thu Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26 for the same reasons set out above. Because the motion raises identical issues, the parties shall address the issues in a single supplemental brief for both motions as set out above.
13	24-01439303 <i>Mehrvijeh vs. Mercedes-Benz USA, LLC</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Production <u>Motion to Compel Deposition</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel the Deposition of Defendant Mercedes-Benz USA, LLC's Person Most Knowledgeable and Production of Document at Deposition is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion and no joint status report was filed. Thus, the Motion is moot. <u>Motion to Compel Further</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel Further Responses to his Requests for Production, set two, is CONTINUED to —. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) "A determination of whether an attempt at informal resolution is adequate ... involves the exercise of discretion." (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) The Court finds the parties meet and confer efforts are inadequate and do not reflect a good faith attempt to resolve the issues informally. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephonic, or videoconference meeting of counsel, no later than 28 calendar days before the continued hearing date. The parties are ordered to file a joint statement of remaining issues, including a description of the additional meet and confer efforts, not to exceed 10 pages, no later than calendar 9 days before the hearing. The Court shall decide the issue of sanctions at the continued hearing date.

15	24-01435993 <i>Noroski vs. Sienna Palmer Ogbevoen, D.D.S., Inc.</i>	Motion for Summary Judgment and/or Adjudication Plaintiff Laura A. Noroski’s Motion for Summary Adjudication is DENIED. Defendants’ objections (ROA 323) are overruled except for Exhibit 9 and 10 (DMG America information on Icon treatment) which are sustained based on hearsay and lack of foundation. Plaintiff’s objections (ROA 334) are overruled. Plaintiff’s objections consist of extensive legal argument which should have been included in her points and authorities, rather than written objections formatted pursuant to California Rules of Court, Rule 3.1354. Plaintiff’s request for judicial notice of Plaintiff’s First Amended Complaint (FAC) is denied as unnecessary. The Court may consider the pleadings in this lawsuit without judicial notice. Plaintiff moves for summary adjudication as to the following issues: Issues 1-5: Defendants committed false advertising by (1) displaying the Jane B., Pam W., and Christin P. patient testimonials on Palm Dentistry’s website, (2) stating “locally owned and operated since 1984” on their website, and (3) stating “Mission Viejo proud since 1984.” Issues 6-7: Defendants committed medical battery by (1) performing a substantially different treatment than a “minimally invasive” “no drilling” ICON treatment, and (2) by removing pre-existing bonding affixed to Plaintiff’s tooth No. 10 against Plaintiff’s instructions. <u>Legal Standard:</u> Code of Civil Procedure section 437c(f)(1) states, “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Section 437c(c) provides, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences
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